

yet in *Bagshaw v. Spencer* (f) Lord Hardwicke almost denied that any such distinction existed. But in a subsequent case (g) his Lordship felt himself called upon to offer some explanation. "He did not mean," he said, "in *Bagshaw v. Spencer*, that no weight was to be laid on the distinction, but that, if it had come recently before him, he should then have thought there was little weight in it, although he should have had that deference for his predecessors, as not to lay it out of the case, not intending to say that all which his predecessors did was wrong founded, which he desired might be remembered."

The distinction now established.— But whatever doubts may formerly have existed upon the subject, they have long since been dispelled by the authority of succeeding judges. "The words executory trust," said Lord Northington, "seem to me to have no fixed signification. Lord King describes an executory trust to be, where the party must come to this Court to have the benefit of the will. But that is the case of every trust. The true criterion is this. Whenever the assistance of this Court is necessary to complete a limitation, in that case, the limitation in the will not being complete, that is sufficient evidence of the testator's intention that the Court should model the limitations; but where the trusts and limitations are *already ex- [*112] pressly declared, the Court has no authority to interfere, and make them different from what they would be at law" (a). And Lord Eldon observed, "Where there is an executory trust, that is, where the testator has directed something to be done, and has not himself completed the devise, the Court has been in the habit of looking to see what was his intention; and if what he has done amounts to an imperfection with respect to the execution of that intention, the Court inquires what it is itself to do, and it will mould what remains to be done, so as to carry that intention into

(f) 1 Ves. 152; and see *Hopkins v. Hopkins*, 1 Atk. 594.

(g) *Exel v. Wallace*, 2 Ves. 323. And Lord Henley once said, he believed Lord Hardwicke had at last

renounced his opinion, *Barnard v. Proby*, 2 Cox, 8.

(a) *Austen v. Taylor*, 1 Eden, 306, 368; and see *Stanley v. Lennard*, ib. 95; *Wright v. Pearson*, ib. 125.